HAMASPIK LEOVDEI HASHEM

Compassion and Generosity: HaMaspik LeOvdei HaShem, Chapters 4-5

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Sefer: HaMaspik L'Ovdei Hashem (Kifayat al-Abidin) — Rabbi Avraham ben HaRambam **Chapters:** End of Perek 4 (רחמנות — Compassion) & Perek 5 (נדיבות — Generosity) **Edition:** Feldheim

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Recap: Chapters 1–4 So Far

- **Chapter 1:** Two paths of Avodat Hashem — the simple path of the righteous (fulfilling everything required) and the path of the Chasid (going beyond what's necessary). The sefer focuses on the path of the Chasid.
- **Chapter 2:** All middot are interconnected — working on one naturally affects others.
- **Chapter 3:** Purity of motive — four levels:
- Level 1 (highest): Serving Hashem because He commanded — no reward, no fear
- Level 2: Serving from fear of punishment / desire for reward (עובד מיראה)
- Level 3: Dual motivation — for Hashem AND for social recognition
- Level 4 (lowest): Only for societal pressure
- **Chapter 4 (first part):**
- Rachamanut = one of the most important middot in Torah
- First of the 13 Attributes of Mercy: אל רחום וחנון
- Many mitzvot given to develop compassion within us
- Achzariyut (cruelty) at its root = indifference (from זר — stranger)
- Tzedakah requires empathy, not just money (Rambam)
- Sometimes mercy is wrong — the Torah commands firmness in specific cases (murderer, meisit, ben sorer u'moreh)
- Examples from Moshe, Dovid, Shmuel — mercy and firmness in the same person

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Chapter 4 (Conclusion): When in Doubt — Be Merciful

The Core Principle

סכנת הרחמים על מי שאינו ראוי להם פחותה מסכנת האכזריות אל מי שראוי לרחמים

- The danger of being merciful to someone who doesn't deserve it is **less** than the danger of being cruel to someone who deserves mercy
- Therefore: **when in doubt, choose mercy over cruelty**
- This parallels the Rambam in the Eight Chapters (Ch. 4): when you can't stay in the golden mean, better to veer toward the merciful extreme than the cruel one

The Chachamim's Statement

כל מי שאין בו דעת אין מרחמין עליו

- A person who is a fool / doesn't appreciate / can't recognize / would be harmed by receiving mercy → wrong to be merciful
- Example: Sinwar ימ"ש — treated for cancer in an Israeli hospital, then orchestrated October 7th
- Not commenting on the diplomatic decisions behind it
- But: this illustrates misplaced mercy — rachamanut used in the wrong way

Investigate Before Being Cruel

ודרשת וחקרת ושאלת היטב

- Even with the greatest sin (avoda zara) — Torah says: investigate, interrogate, ask thoroughly
- Ed zomem (false witness to be executed) — must search and investigate carefully
- The point: yes, the Torah commands cruelty sometimes — but you must be **100% certain** before acting harshly
- In doubt → don't do it

Charity When in Doubt — Give

אמר פרנסוני אין בודקין אותו

- If someone asks for **food** → give immediately, don't question
- This is halacha in the Shulchan Aruch and the Gemara
- **Caveat:** This applies specifically to food — basic necessities
- Food = essential, basic mercy
- Source: על אשר לא קדמו אתכם בלחם ובמים — Ammon and Moav condemned for not offering bread and water
- For monetary charity generally → verification is appropriate (e.g., Va'ad HaTzedakah certificates in England)
- But for food → no questions, give straight away

Don't Be Quick to Punish

וכן צריך שלא למהר ולהעניש כמו שנסתבר ממידותיו יתעלה ארך אפים

- Be patient — don't rush to punish
- Hashem Himself is described as ארך אפים — slow to anger

Don't Delay Charity — The Story of Nachum Ish Gamzu

- Nachum Ish Gamzu — famous Tanna, righteous, miracle worker
- Yet: blind, body covered in boils and illness
- His students asked: why did this happen to you?

The story (Gemara Taanit):

- Traveling on his donkey
- A poor man came and said: פרנסני — feed me
- Nachum said: fine, but follow me a bit further down the road, I'll unload and give you plenty

- The poor man was too tired and hungry — couldn't wait — collapsed and died
- Nachum knew he had sinned by not hastening to feed him immediately
- The sin was so great in his eyes → he asked for suffering in this world (yissurim) to preserve his portion in Olam Haba
- The illnesses came upon him as a result

Lesson: When you have a mitzvah of charity or compassion → do it immediately, don't delay

God's Mercy Is 500 Times Greater Than His Judgment

מרובה מידת רחמים ממידת הדין אחת לחמש מאות

The calculation:

- Mercy: נוצר חסד לאלפים — "guards kindness for thousands"
- Onkelos translates: אלפי דרין — thousands of generations
  minimum of "thousands" (plural) = 2,000 generations — מיעוט רבים שנים
- Judgment: פוקד עון אבות על בנים על שלשים ועל רבעים — exacts justice for 4 generations
- **2,000 ÷ 4 = 500**
- God's mercy exceeds His judgment by a ratio of 500:1

The Rambam in Moreh Nevuchim — Same Principle

- Sometimes a person needs to show anger, portray judgment, be particular
- Examples: destroying nations so they don't corrupt you — necessary harshness
- **But:** ראוי שיהיו פעולות הרחמים... מרובות הרבה מפעולות העונש
- A person's acts of mercy should be **far more** than acts of punishment
- Because the 13 Attributes of Mercy are almost all mercy — only one involves judgment

Practical Application — Relationships

- Whether parent-child, employer-employee, spousal relationship:
- Sometimes you need to criticize, offer negative feedback, reprimand, punish
- But if at the end of the week/month you see **more** instances of punishment than praise → something is wrong
- Breakdown in relationship will follow
- **The ratio must favor mercy over cruelty**

Chapter 5: נדיבות — Generosity

The Meaning of Nedivut

- From the root נדב — as in כל נדיב לבו (Terumah, Vayakhel, Pekudei)
- At least seven Hebrew words for giving: nedavah, mattanah, minchah, shai, doron, berachah, and more
- **Nedavah is the highest level** — always associated with the heart (נדיב לב)
- Generosity from complete volition — no compulsion, purely from the heart
- This is why Hashem told Moshe about the Mishkan: only people who are nediv libo
- Result: so much was given that Moshe had to tell people to stop — perhaps the only time in history

Definition

הנדיבות הוא ביטוי להענקת רוב טובה למי שאינו חייב לו המעניק

- Generosity = giving to someone when there is **no obligation** to do so
- Of your own volition, you decide to give

כי לתת לפועל שכרו ולפרוע לבעל חובו את חובו אינו נדיבות אלא יושר

- Paying your employee, repaying a loan = not generosity, just justice (yosher)
- Hospitality, gifts, charity = true nedivut

Generosity as a Divine Attribute

כי הוא יתעלה הגדיר כתכונותיו את מה שרואים ממעשיו הטובים

- Hashem describes Himself as חנון ורב חסד — generous and abundant in kindness
- **Important philosophical point:** When we speak of God's 13 Attributes, we don't mean God literally "has" 13 separate attributes
- God is peshitut — simplicity, indivisible
- These are descriptions of how **we perceive** God's actions from our perspective
- Rabbi Avraham follows his father's (the Rambam's) philosophy on this exactly

ובריאת עולמו היא עצמה מעשה חסד ונדבה

- The creation of the universe itself = an act of generosity
- As Dovid HaMelech says: אמרתי עולם חסד יבנה — the world was built with kindness
- God created the world le-heitiv — to bestow goodness

Four Key Definitions: Generosity, Miserliness, Extravagance, Thriftiness

Rabbi Avraham distinguishes two separate symmetries:

Symmetry 1 — Vis-à-vis others:

Term	Hebrew	Direction	Meaning
Generosity	נדיבות	Toward others	Giving to others from your own volition
Miserliness	קמצנות	Toward others	Refusing to give to others

Symmetry 2 — Vis-à-vis yourself:

Term	Hebrew	Direction	Meaning
Extravagance	בזבוז	Toward yourself	Spending lavishly on yourself — best house, clothes, holidays
Thriftiness	חסכון	Toward yourself	Not spending on luxuries for yourself — saving

Key insight: You can be a mevazbez (extravagant on yourself) and still be a kamtzan (miser toward others). Having the nicest house and car doesn't make you generous — generosity is measured by what you give to **others**.

אדרבה אם מצמצם בהוצאותיו ומטיב עם זולתו נחשבת נדיבות

- The **greatest** generosity: thrifty on yourself, generous with others

A difficulty with this framework:

- The Gemara (Ketubot) says: המבזבז אל יבזבז יותר מחומש — "one who is mevazbez should not give more than one-fifth"
- This uses the word בזבוז in the context of giving **tzedakah to others**
- According to Rabbi Avraham's definitions, bisbuz = spending on yourself — not on others
- Rabbi Kada noted: this is a genuine difficulty. The Gemara seems to use mevazbez for generous giving to others, not just self-spending
- He doesn't have a resolution but noted the question

Generosity Must Be Directed Correctly

והנדיבות הנזכרת... פירושה שאדם נדיב ומטיב במה שיש לו לאנשים הראויים לעת ולמקום

- Generosity doesn't mean giving everything to everyone at any time
- Give to **the right people, at the right time, in the right measure**

Example from God Himself:

- God gave intellect to humans — not to animals. Not everything is appropriate for everyone.
- God gave us incredible variety of food — fruits, vegetables, colors, flavors. Animals don't have the same variety.
- God gave the Torah to Am Yisrael — not to every nation
- God gave prophecy only to those worthy of it

The principle: גומל חסדים טובים — there is chesed tov (good kindness) and chesed ra (bad kindness)

- Water = most important thing in life. Give too much → you'll kill someone.
- Kindness = same. Give too much, to the wrong person, at the wrong time → you'll cause harm.
- We want chasadim **tovim** — good generosity directed properly.

Don't Hoard

ושלא יטמין האדם מה שחננו אלוהים כדי להניח לאחרים

- Don't hoard money just to leave it to the next generation
- Source: יצבור ולא ידע מי אוספם — "He gathers and gathers and doesn't know who will collect it" (Tehillim)
- How many cases of parents who saved their whole lives → children squabble over the will → lawyers get the money
- Shlomo HaMelech: sometimes Hashem punishes someone by giving them money, money, money — and in the end it goes to someone else

The Order of Giving

- Start with yourself and your family — ושמחת בכל הטוב... אתה וביתך
- Then include the poor, the stranger — ואתה והלוי והגר אשר בקרבך
- Don't just throw lavish parties for wealthy friends — host those who actually need it
- **Hospitality vs. entertainment:** Hospitality = caring for those in need. Entertainment = enjoying company of those who don't need you.

Four Kinds of Generosity

והנדיבות המעוללת אינה רק בממון... אלא גם השפעתו חכמתו ואמונתו

Generosity is not just about money. Rabbi Avraham identifies four categories:

1. Generosity with Money (נדיבות בממון)

- Share your assets with those who need it
- Don't just spend on luxuries for yourself and your household
- Spend on necessities, family first, then extend outward
- The Torah gave many mitzvot to train this:
- Pe'ah (corner of the field)
- Peret (fallen grapes)
- Olelot (unformed grape clusters)
- Shichechah (forgotten produce)
- Ma'aser ani (tithe for the poor)
- Tzedakah (charity generally)
- Halva'ah (lending)
- Matnot Kehunah (gifts to Kohanim)
- Ma'aser Levi
- Ha'anakah to an Eved Ivri (bonus upon release)
- Shmitah (land rest every 7 years)
- Shemitat kesafim (loan release every 7 years)
- Yovel (jubilee every 50 years)
- All designed to develop generosity within us

Ha'anakah — The Eved Ivri Bonus:

- He served you for six years. You paid for him when you bought him. That's it, finished.
- Yet the Torah says: give him extra when he leaves — a "package"
- People say "that's their job, why thank them?" — Torah teaches the opposite
- This is the earliest version of an employment separation package

2. Generosity with Influence (נדיבות בכוח השפעה)

- If Hashem blessed you with connections, relationships, contacts → share them with those who need them
- Source: the Navi says: היש לדבר לך אל המלך או אל שר הצבא — "Can you speak to the king for me?"
- Common problem in the charity world: "I know him, I can't share his number, that's my contact"
- **Rabbi Sacks' point:** Power is a zero-sum game; influence is the opposite
- If you see your connections as **power** → you won't share (sharing diminishes your power)
- If you see them as **influence** → sharing increases your ability to influence
- The more you share, the more you influence, the better it is

3. Generosity with Intellect (נדיבות בחכמה)

- Teach wisdom to those who seek it and are worthy
- Source: ושננתם לבניך — teach your children. Chazal: אלו תלמידיך — "your children" = your students

- Source: ראה למדתי אתכם — "See, I have taught you." Gemara: מה אני למדתי בחנם אף אתם למדו בחנם — just as I taught for free, you teach for free
- Applies to Torah, but certainly to all fields
- The beauty of a community: each person specialized in something (lawyer, doctor, rabbi, engineer) → a vibrant community shares these talents with one another

4. Generosity with Faith (נדיבות באמונה)

- One of the earliest references to the concept of **kiruv** (bringing people closer)
- Bring those who are far from faith closer

  ישיב לב פושעים בתוכחות נבונות — return the hearts of sinners through wise reproof
- Source: הוכח תוכיח את עמיתך — reprove your fellow — but in the correct way, responsibly, beneficially

The Miser Is Compared to a Heretic

מי שנפשו שרויה במידת הקמצנות כינתה התורה בשם כופר

- The Torah calls a miser by the term "kofer" (heretic)
- Rabbi Avraham's proof — juxtaposition of the same phrase "bnei beliya'al":
- **Ir HaNidachat** (city that committed avoda zara): יצאו אנשים בני בליעל — heretics
- **Refusing to lend before Shmita:** השמר לך פן יהיה דבר עם לבבך בליעל — same term
- The Torah uses "beliya'al" (without a yoke / heretic) for both idol worship AND refusing to lend
- Rabbi Avraham deduces: they are comparable — avoda zara and miserliness
- Rabbi Kada's note: this appears to be Rabbi Avraham's own idea — no earlier source identified

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Avraham Avinu — The Model of All Four Kinds of Generosity

ועליך להתבונן בתולדות אבינו האציל אברהם אשר יסד מנהג הנדיבות הידוע גם היום

- Avraham established the practice of generosity still known today
- All laws of hachnasat orchim (hospitality) trace back to him

The acronym אש"ל (Eshel):

ויטע אשל בבאר שבע — He planted an eshel in Be'er Sheva

א = אכילה — eating

ש = שתייה — drinking

ל = לוויה — accompanying

On Levaya (accompanying guests):

- Halacha in Shulchan Aruch: walk a guest out at least arba amot (approx. 2 meters)
- Eating and drinking nourish physically; levaya nourishes emotionally
- The Maharal (Prague) on Egla Arufa: the elders declare "we didn't spill the blood" = we made sure to accompany the traveler. If he wasn't accompanied, he lacked the emotional strength to face his journey. That's why they'd be responsible.

Avraham's Generosity with Intellect (חכמה)

- Taught philosophy and monotheism to masses of people

  ואברהם זקן בא בימים — the Chazal read: זקן = זה קנה חכמה — he acquired and taught wisdom

ואת הנפש אשר עשו בחרן — Onkelos: the souls they brought to Torah" the souls they made in Charan"

כי ידעתיו למען אשר יצוה — "I chose him because he will teach others"

Avraham's Generosity with Faith (דת)

- Beyond philosophical teaching — he preached simple faith in God
- Wherever he went, he built a mizbeach and called out in the name of Hashem
- After feeding guests, they'd say "let me thank you" → he'd say "no, thank the One who gave us the food"
- Rambam in Mishneh Torah (Avodah Zarah): Avraham traveled city to city teaching → gathered thousands upon thousands (אלפים ורבבות)

Avraham's Generosity with Influence (השפעה)

וירק את חניכיו ילידי ביתו — when Lot was captured, Avraham mobilized his entire army

- He had power and influence → he used it for others, didn't say "I don't want to endanger my people for my nephew"

Avraham's Generosity with Money (ממון)

- The famous hospitality scene with the angels:
- Said: "Take a bit of water, a bit of bread" (said little)
- Actually prepared: the finest flour, three se'ah (large amount), butter, milk, and the choicest meat

צדיקים אומרים מעט ועושים הרבה — the righteous say little and do much

- Then: והוא עומד עליהם תחת העץ ויאכלו — he stood over them while they ate
- Not just food → personal presence, spending time
- The highest form of hospitality

Lot Followed Avraham's Path

- Lot learned generosity from his uncle Avraham
- When the angels came to Sodom → he rushed to invite them, prepared a feast
- Even offered his daughters to protect his guests (going to excess)
- **Note on "vision":** Rabbi Avraham refers to Lot's story as a חזיון (vision)
- Following his father the Rambam's philosophy: all encounters with angels in Torah = prophecy/vision, not literal
- HaRamban (Nachmanides) famously disagreed
- One of Ramban's questions: how did Lot merit prophecy?
- But Rabbi Avraham clearly follows his father on this point

Key Takeaways

1. **When in doubt — be merciful.** The danger of misplaced mercy < the danger of misplaced cruelty.
2. **Don't delay charity.** The story of Nachum Ish Gamzu — immediate action saves lives.
3. **God's mercy exceeds judgment 500:1** — our ratio should favor mercy too.
4. **Generosity ≠ giving everything to everyone.** Direct it to the right people, at the right time, in the right measure.
5. **Four kinds of generosity:** money, influence, intellect, and faith. All are important.

6. **Extravagance on yourself + miserliness toward others = still a kamtzan.** True generosity = thrifty on yourself, generous with others.
7. **The miser is compared to a kofer** — the Torah uses the same term (beliya'al) for both.
8. **Avraham Avinu modeled all four kinds** — hospitality, teaching philosophy, preaching faith, using influence for others.

Preview: Next Shiur

- Completing Chapter 5 (nedivut)
- **Chapter 6:** כעס ונוחות — Anger and Calmness

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